

damage but in no case less than four thousand dollars (\$4,000), and any attorney's fees[.]” (Civ. Code § 52(a).) The County's position rests on the premise that such treble damages do not serve a compensatory purpose but are purely punitive.

Plaintiff counters that statutory treble damages can still be pursued against public entities when these damages serve nonpunitive purposes. Citing cases like *Los Angeles County Metropolitan Transportation Authority v. Superior Court* (2004) 123 Cal.App.4th 261 (“MTA”), *Kelly v. Yee* (1989) 213 Cal.App.3d 336, 342, and *Wiley v. Kern High School District* (2024) 107 Cal.App.5th 765, Plaintiff argues that treble damages are permissible as long as they are not aimed primarily to punish the County.

In *MTA*, the court held that the \$4,000 statutory minimum in Civ. Code § 52(b)(2) serves a compensatory purpose—it ensures plaintiffs receive meaningful recovery when actual damages are difficult to quantify or prove. (*MTA*, *supra*, 123 Cal.App.4th at 273.) Because that minimum fills a gap in compensation rather than punishing the defendant, it is not barred by Gov. Code § 818. However, the treble damages multiplier in section 52(a) operates differently. It scales in proportion to actual damages already proven, which raises the question whether it is punitive rather than compensatory. Thus, the exception recognized for section 52(b)(2) does not automatically extend to section 52(a), but neither has the County demonstrated that treble damages under section 52(a) are categorically punitive so as to be barred by Gov. Code § 818. DENIED

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CASE #	CASE NAME	HEARING NAME
CVPS2509978	BREWER VS CRYSTAL CHRYSLER DODGE JEEP RAM	HEARING RE: DEFENDANT'S MOTION TO COMPEL DEPOSITION

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday August 11, 2026 at 8:30 a.m. in Department PS2.

Plaintiff Benjamin Brewer brings this Song-Beverly action regarding a 2024 Jeep Wrangler that has defects to the electric battery, engine, transmission and electrical system. The complaint, filed 6/23/25, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment. Trial is not set.

Defendants move to compel Plaintiff's deposition to take place within 15 days. On 11/20/25, Defendants served a notice of deposition for deposition to take place on 2/3/26. Plaintiff's counsel emailed unavailability and objected. Defendants followed up asking for alternative dates, but Plaintiff failed to provide any dates.

In an untimely opposition, Plaintiff contends that he is seeking to dismiss the claims and requests the court continue the hearing 30 days to allow the dismissal or deem the motion as moot.

Motion to Compel Deposition

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., §

2025.280(a).) Section 2025.450(a) states: “If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (emphasis added.) The parties are required to meet and confer, or in the case of a nonappearance, the moving party inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).)

Plaintiff does not dispute that he failed to appear, but instead, intends to dismiss the action.

The court continued the matter on July 30, 2026 to allow Plaintiff to appear at deposition or dismiss the action. No new papers have been submitted.